

TENTATIVE RULINGS for LAW and MOTION

February 20, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Four	(530) 406-6922
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: Gavin v. Inn at Park Winters, LLC et al.
Case No. CV-2025-2565

Hearing Date: February 20, 2026 **Department Four** **9:00 a.m.**

Demurrer:

The Court rules on defendants Inn at Park Winters, LLC, Rafael Galiano, and John Martin's ("defendants") demurrer to plaintiff Sharon Gavin's ("plaintiff") complaint as follows:

- Defendants' demurrer to the third cause of action for fraudulent misrepresentation is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to constitute this cause of action. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384; Complaint ¶¶ 35-45.)
- Defendants' demurrer to the fourth cause of action for fraudulent concealment is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.) The Court finds that plaintiff's complaint fails to state facts sufficient to constitute this cause of action. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40 [the elements for fraudulent concealment are: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact]; see also *Lazar, supra*, 12 Cal.4th at p. 645 ["[i]n California, fraud must be pled specifically; general and conclusory allegations do not suffice"].) Specifically, the Court finds that plaintiff fails to allege facts that defendants had a duty to disclose a material fact and that defendants intended to defraud plaintiff by intentionally concealing or suppressing the fact. (*Rattagan, supra*, 17 Cal.5th at p. 40; Complaint ¶¶ 46-54.)
- Defendants' demurrer to the fifth cause of action for financial elder abuse is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to constitute this cause of action. (Welf. & Inst. Code § 15610.30; *Ring v. Harmon* (2021) 72 Cal.App.5th 844, 853; see also *Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 478-479; Complaint ¶¶ 55-63.)

Plaintiff may amend her complaint by no later than **March 2, 2026** (10 days after the hearing). (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike:

Defendants' motion to strike is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 435, 436.) The notice of motion to strike does not specify the portions of the complaint sought to be stricken but instead refers to the declaration of Thomas W. Barth. (Cal. Rules of Court, rule 3.1322(a); Notice of motion, pp. 1-2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In the Matter of Devon McEwen Jr.**
 Case No. PR-2025-0272

Hearing Date: **February 20, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Dawunjanay Ware, and the minor, Devon McEwen Jr., are **DIRECTED TO APPEAR** (in person or by Zoom) (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **In the Matter of Lily-onna McEwen**
 Case No. PR-2025-0273

Hearing Date: **February 20, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Dawunjanay Ware, and the minor, Lily-onna McEwen, are **DIRECTED TO APPEAR** (in person or by Zoom) (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **In the Matter of Sahara McEwen**
 Case No. PR-2025-0271

Hearing Date: **February 20, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Dawunjanay Ware, and the minor, Sahara McEwen, are **DIRECTED TO APPEAR** (in person or by Zoom) (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **In the Matter of Sah-nia McEwen**
 Case No. PR-2025-0270

Hearing Date: **February 20, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Dawunjanay Ware, and the minor, Sah-nia McEwen, are **DIRECTED TO APPEAR** (in person or by Zoom) (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.